

NOTICE OF THE EXTRA ORDINARY GENERAL MEETING

SHORTER NOTICE is hereby given that the Twenty-Fifth Extraordinary General Meeting ('EGM') of the Members of Nivara Home Finance Limited ('the Company') will be held on **Wednesday, 11th September 2024 at 5:30 p.m. (IST)** through Video Conferencing (VC) or other Audio-Visual Means (OAVM) to transact the following business:

SPECIAL BUSINESS:

Item No:1

To approve & adopt employment agreement dated 30th March 2024 executed between the Company and Mr. Chalamalasetti Venkateswara Rao, MD & CEO (DIN: 06994756)

To consider, and if thought fit, to pass, with or without modification(s), the following resolution as a **Special Resolution:**

“RESOLVED THAT pursuant to the section 196, 197, 117 and Schedule V and other applicable provisions, if any, of the Companies Act, 2013 read with Companies (Appointment and Remuneration of Managerial Personnel) Rules, 2014 (including statutory modification thereof and any circulars, notifications, clarifications, rules passed thereunder from time to time) and in accordance with Memorandum & Article of association of the company, the consent of the members be and is hereby accorded for approval & adoption of Employment Agreement dated 30th March, 2024 as 'Master Employment Agreement' entered with Mr. Chalamalasetti Venkateswara Rao (DIN: 06994756), Managing Director & Chief Executive Officer of the Company and to amend the remuneration clause of this agreement in line with the approval granted by the Shareholders at the 10th Annual General Meeting held on 26th June, 2024, by incorporating such changes in the Second Supplemental Employment Agreement as placed before shareholders.

RESOLVED FURTHER THAT except for the aforesaid amendment in remuneration clause, all other terms and conditions of the Master Employment Agreement dated 30th March, 2024 shall remain unchanged.

RESOLVED FURTHER THAT aforesaid Second Supplementary Employment Agreement along with Master Employment Agreement shall revoke the Agreement executed on 04th January, 2024 and 04th July, 2024.

RESOLVED FURTHER THAT any of the directors of the Company or Company Secretary, CFO be and is hereby authorized severally to sign and submit necessary papers, documents, forms, etc. with the Registrar of Companies (ROC) and/or any other authority and in general, to do all such acts, deeds, matters and things as may be necessary, expedient and desirable, for and on behalf of the Company, to give effect to the aforesaid resolution.”

Registered Office

Item No: 2**To approve alteration of the Articles of Association of the Company**

To consider, and if thought fit, to pass, with or without modification(s), the following resolution as a **Special Resolution:**

“RESOLVED THAT pursuant to the provisions of Section 14 and all other applicable provisions, if any, of the Companies Act, 2013 read with Companies (Incorporation) Rules, 2014 (including statutory modification thereof and any circulars, notifications, clarifications, rules passed thereunder from time to time), and in accordance with the Memorandum of Association of the Company, the consent of the Members be and is hereby accorded to alter the Articles of Association of the Company to remove and resolve the contradictory or conflicting Clauses in the Articles as presented to the shareholders for their consideration and approval.

RESOLVED FURTHER THAT the draft altered Articles as tabled before the Members be and is hereby adopted as the ‘Articles of Association’ of the Company.

RESOLVED FURTHER THAT for the purpose of giving effect to this resolution, any of the directors of the Company, Chief Financial Officer or Company Secretary be and are hereby authorised to do all acts, deeds and things, execute and deliver all forms, applications, certificates and documents, issue certified true copies of this resolution and share the same with all those concerned and to take all steps and give such directions which may be deemed fit by them in their absolute discretion, including making relevant filings with the Registrar of Companies and intimations to any statutory authorities, if required in this regard.”

**By Order of the Board of Directors
For Nivara Home Finance Limited**

**Place: Bangalore
Date: 10.09.2024**

**Swati Shaw
Company Secretary
M. No. A62052**

Registered Office

Nivara Home Finance Ltd., No 22,23,24,25/101/3,3rd Floor, BNR Complex, Sri Rama Layout,
Opp. RBI Layout,7th Phase, J.P. Nagar, Bangalore - 560 078 | CIN: U65922KA2014PLC077547
Tel: +91 80 2655 2822 / 77 | Email: contact@nivarahousing.com | www.nivarahousing.com

Notes:

1. In view of the General Circular vide No. 09/2023 issued by the Ministry of Corporate ('MCA') dated 25th September, 2023 read with the relevant MCA Circulars, the MCA permitted the holding of the Extra-Ordinary General Meeting ('EGM') through Video Conferencing/Other Audio Visual Means (VC/OAVM), without the physical presence of the Members at a common venue upto 30th September, 2024. Accordingly, in compliance with the General Circular No. 20/2020 dated 5th May, 2020 and the provisions of the Companies Act, 2013, this EGM of the Company is being conducted through VC/OAVM.
2. Since this EGM is being held through VC/OAVM facility, physical attendance of the members has been dispensed with. Accordingly, the facility to appoint proxy to attend and cast the vote for the members is not available at this EGM and hence Proxy Forms & Attendance Slips are not annexed to this Notice.
3. The attendance of the Members attending the EGM through Video Conferencing/Other Audio Visual Means will be counted for the purpose of reckoning the quorum under section 103 of the Companies Act, 2013.
4. The details of VC/OVAM link for joining this meeting shall be communicated to the Members separately through e-mail.
5. The Statutory Registers, as applicable to the Company, are available for inspection through electronic mode. Members desiring inspection of Statutory Registers during the EGM may send their request in writing to the Company at swati.s@nivarahousing.com.
6. The Explanatory Statements pursuant to Section 102 of the Companies Act, 2013 in respect of special business of the Notice set out above is annexed hereto.

**By Order of the Board of Directors
For Nivara Home Finance Limited**

**Swati Shaw
Company Secretary
M. No. A62052**

**Place: Bangalore
Date: 10.09.2024**

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EXPLANATORY STATEMENT PURSUANT TO SECTION 102 OF THE COMPANIES ACT, 2013.

Item No. 1

To approve & adopt employment agreement dated 30th March 2024 executed between the Company and Mr. Chalamalasetti Venkateswara Rao, MD & CEO (DIN: 06994756)

Mr. Chalamalasetti Venkateswara Rao is a promoter cum director on the Board of the Company.

An agreement dated 4th January 2024 was executed by the Company and Mr. Chalamalasetti Venkateswara Rao (hereinafter referred to as 'Parties') pursuant to re-appointment of Mr. C V Rao as the MD & CEO of the Company at a duly convened meeting of the Shareholders' held on 29th December, 2023.

Thereafter, First Supplementary Agreement was executed on 04th July, 2024 owing to an increase in remuneration payable to Mr. C V Rao, as approved by the Shareholders at their meeting held on 26th June, 2024.

The Parties further entered into an Employment Agreement on 30th March, 2024 pursuant to the 'Shareholders Agreement' to modify the terms & conditions of re-appointment. With the intention to adopt the Employment Agreement dated 30th March, 2024 as Master Employment Agreement and to make amendment to Schedule II (Remuneration) of the said Agreement in accordance with the approval of Shareholders at the 10th Annual General Meeting held on 26th June, 2024, the approval of the members of the Company is sought, by way of a Special Resolution.

The Board through its meeting dated 09th September, 2024 has granted its approval for adoption of Employment agreement dated 30th March, 2024 as Master Employment Agreement along with the amendment in Schedule II (Remuneration) & recommends passing of the Resolutions at item no. 1 as **Special Resolution** by the Members.

None of the Directors except Mr. Chalamalasetti Venkateswara Rao, Key Managerial Personnel and their relatives are in any way concerned or interested in the said resolution.

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Item No. 2**To approve alteration of the Articles of Association of the Company**

The Members of the Company through their Meeting dated 30th March, 2024 amended Articles of Association of the Company to restate Articles in consonance with Shareholders' Agreement dated 24th February, 2024 by incorporating it in Article as 'Part B'.

Considering contradiction/conflicts in the provisions of Part A & Part B of the Articles, it is pertinent to align both the parts and remove contrary provisions.

Pursuant to the provisions of section 14 of the Companies Act, 2013, alteration of articles requires approval of the members of the Company by way of a Special Resolution at a general meeting.

The Board of Directors in their meeting held on 09th September 2024 has approved the amendment in the Article of Association of the Company as set out in item no. 2 of the notice and recommends passing of this Resolution as **Special Resolution** by the Members.

Draft of the altered AOA proposed to be amended shall be placed at the meeting for inspection by the members and shall also be available for inspection at the registered office of the Company between 10.00 A.M. and 05.00 P.M. on any working day except Saturday and Sunday.

None of the Directors and Key Managerial Personnel of the Company or their respective relatives is concerned or interested in the passing of the Resolutions as item No. 2.

**By Order of the Board of Directors
For Nivara Home Finance Limited**

**Place: Bangalore
Date: 10.09.2024**

**Swati Shaw
Company Secretary
M. No. A62052**

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